

Smt Deepa P vs Sri A Lokesh on 9 February, 2023

Author: Pradeep Singh Yerur

Bench: Pradeep Singh Yerur

-1-

CP No. 429 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 9TH DAY OF FEBRUARY, 2023
BEFORE
THE HON'BLE MR JUSTICE PRADEEP SINGH YERUR
CIVIL PETITION NO. 429 OF 2022

BETWEEN:

SMT. DEEPA P.
AGED ABOUT 32 YEARS
W/O SRI A. LOKESH
R/AT 23/1, 5TH TEMPLE ROAD,
16TH CROSS, MALLESHWARAM
BENGALURU - 560 003

...PETITIONER

(BY SRI. MUJTABA H., ADVOCATE)

AND:

SRI A. LOKESH
S/O APPAJI GOWDA
AGED ABOUT 40 YEARS
R/AT NO.521, BYRAPATNA
CHANNAPATNA TALUK
RAMANAGARA DISTRICT - 562 160

...RESPONDENT

(BY SRI. DHANANJAYA S.B., ADVOCATE)

Digitally
signed by B
LAVANYA
Location:
HIGH
COURT OF
KARNATAKA

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF
THE CODE OF CIVIL PROCEDURE, 1908. PRAYING TO

(a) TRANSFER THE PETITION IN M.C.NO.45/2021 FILED BY THE
RESPONDENT HEREIN AND PENDING ON THE FILE OF SENIOR
CIVIL JUDGE AND JMFC, CHANNAPATNA TO THE COURT OF
THE LEARNED VI ADDITIONAL PRINCIPAL JUDGE, FAMILY
COURT, BENGALURU TO BE TRIED ALONG WITH
M.C.NO.3553/2022 PENDING ADJUDICATION BEFORE THE
COURT OF THE LEARNED VI ADDITIONAL PRINCIPAL JUDGE,
FAMILY COURT, BENGALURU AND ETC.,

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

- 2 -

CP No. 429 of 2022

ORDER

Heard learned counsel for petitioner and learned counsel for respondent.

2. This petition is preferred by the petitioner - wife seeking transfer of matrimonial proceedings in MC No.45/2021 pending on the file of the Senior Civil Judge and JMFC at Channapatna to the Court of VI Addl. Principal Judge, Family Court, Bengaluru to be tried along with pending MC No.3553/2022 filed by the petitioner.

3. The case of the petitioner is that she got married to the respondent on 28.05.2012 at Thimmamma Kalyana Mantapa, Chikkamalluru, Channapatna Taluk, Ramanagara District, which came to be registered on 28.06.2014. After the resided at Ramanagara. A girl child is born from the said marriage. During the stay of the petitioner, the respondent and his parents tortured the petitioner physically and mentally demanding her to bring dowry.

4. It is the case of the petitioner that there were several quarrels between them. On 30.10.2017 the respondent deserted the petitioner. All efforts by the petitioner to rejoin the matrimonial home has not yielded any result. There was exchange of notice and reply between them.

5. It is the case of the petitioner that she came back to her parents house but respondent did not show any interest in taking back the petitioner to matrimonial home. She contends that there were several panchayaths and petitioner started staying with her husband and presently she is residing with her parents.

6. Finally, the petitioner filed a petition under Section 13 (1)(ia)(ib) of Hindu Marriage Act in M.C. No.3553/2022, which is pending adjudication before the VI Addl. Principal Judge, Family Court, Bengaluru.

7. During the pendency of the above case filed by the petitioner, the respondent filed a separate petition Section 13 (1)(ia)(ib) of Hindu Marriage Act in M.C. No.45/2022, which is pending adjudication before the Principal Judge & JMFC, Family Court, Channapatna.

8. It is the case of the petitioner that she has taken shelter under her parents at Bengaluru and staying with them and prosecuting the case filed by her. Since the petitioner is residing presently at Bengaluru, it would be difficult for her to travel from Bengaluru to Channapatna to attend the proceedings in the Family Court, which would involve costs for stay, accommodation and food and the distance between two places is approximately 80 kms. Besides, the respondent and his family members are influential persons in Channapatna and they have men and material at their disposal

and even she has life threat at Channapatna.

9. In view of this, learned counsel for petitioner contends that if the matter is transferred to Bengaluru, where the petitioner is residing, it will be easy for her to attend to the case and she would not have to incur much expenditure and avoid threat to her life.

10. Per contra, learned counsel for respondent vehemently contends that after marriage the couple started living in the house of respondent at Channapatna along with his family members. He further contends that he is having lotss of responsibility to look after his parents, who are absolutely depending upon him. He is ready and willing to accept his wife

- petitioner and their children and to lead a happy life. Hence, he has also filed the petition for dissolution of their marriage. In view of the above he is not in a position to travel all the way to Bengaluru to attend the proceedings. On these grounds he seeks to dismiss the present petition filed by the petitioner.

11. Be that as it may, the facts remains that this petition is filed seeking transfer of petition and this Court will have to see the difficulties that would be faced by either of the parties in the matter being transferred from one location to another. The petitioner being the wife and unemployed, having minor daughter and residing in her parents house, will be put to more difficulty than the respondent, if she has to travel from Bengaluru to Channapatna. It is to be noted that the distance between Bengaluru and Channapatna is about 80 kms. On the contrary, the hardship and inconvenience is much lesser to the respondent if he travels from Channapatna to Bengaluru to attend the proceedings.

12. Under these circumstances, I am of the opinion that the petition deserves to be allowed. Accordingly, I pass the following:

ORDER

i) Petition is allowed;

ii) The matrimonial proceedings in MC.No.45/2021 pending on the file of the Senior Civil Judge and JMFC at Channapatna is transferred to the Court of VI Addl.

Principal Judge, Family Court, Bengaluru to be tried along with pending MC No.3553/2022 filed by the petitioner.

Sd/-

JUDGE VK